

COURT OF APPEALS OF THE STATE OF WASHINGTON

DIVISION ONE

ZACKARIAH BENNETT, Appellant

v.

MELVINA MANNING, Respondent

No. 87007-6

APPELLANT’S REPLY BRIEF

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TABLE OF AUTHORITIES

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- ◆ *Green v. A.P.C.*, 136 Wn.2d 87, 960 P.2d 912 (1998)
- ◆ *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238 (1944)
- ◆ *Lasalle Nat’l Bank v. San Juana*, 95 Wn. App. 148, 974 P.2d 1249 (1999)
- ◆ *Mathews v. Eldridge*, 424 U.S. 319 (1976)
- ◆ *Millay v. Cam*, 135 Wn.2d 193, 955 P.2d 791 (1998)
- ◆ *Pumphrey v. K.W. Thompson Tool Co.*, 62 F.3d 1128 (9th Cir. 1995)
- ◆ *Restatement (Second) of Torts* § 700
- ◆ *Roberson v. Perez*, 156 Wn.2d 33 (2005)
- ◆ *Stiley v. Block*, 130 Wn.2d 486, 925 P.2d 194 (1996)
- ◆ *Strode v. Gleason*, 9 Wn. App. 13, 510 P.2d 250 (1973)
- ◆ *Troxel v. Granville*, 530 U.S. 57 (2000)
- ◆ *Waller v. State*, 64 Wn. App. 318, 824 P.2d 1225 (1992)
- ◆ *Young v. Key Pharmaceuticals, Inc.*, 112 Wn.2d 216, 770 P.2d 182 (1989)
- ◆ *Story v. Shelter Bay Co.*, 52 Wn. App. 334, 345 (1988)

I. INTRODUCTION

Respondent's revised answer continues to mischaracterize this case and fails to rebut the core allegations. This case is not a custody dispute; it is a tort action alleging fraud, custodial interference, abuse of process, intentional infliction of emotional distress, defamation, and statutory violations. Respondent offers no admissible evidence to negate these claims and instead relies on procedurally flawed findings and uninvestigated allegations from prior proceedings dehor the record. This Court should reverse the summary judgment and remand for trial.

II. RESPONDENT FAILS TO DENY APPELLANT'S ALLEGATIONS OF FRAUD AND INTERFERENCE

Respondent does not deny inducing the 2013 relinquishment through false representations, concealing the secret agreement barring Appellant from contact, or abusing judicial process. Washington recognizes tortious interference with parental rights. *Strode*, *Waller*, *Grange*. The elements of fraud are likewise met. *Stiley*. Her silence on these facts concedes genuine disputes of material fact.

III. RESPONDENT'S LIMITATIONS DEFENSE IGNORES DISCOVERY RULE, EQUITABLE TOLLING, AND FRAUD ON THE COURT

Limitations were tolled under *Green* and *Millay* due to Respondent's concealment.

Appellant was led to believe reunification was possible until 2019 and only learned of

the full scope of fraud in 2022. Moreover, where fraud affects the integrity of the judicial process, courts may act even absent diligence. *Hazel-Atlas, Pumphrey*.

IV. DVPO PROCEEDING DID NOT ADJUDICATE CIVIL CLAIMS

The DVPO proceeding addressed only the protective order. The trial judge expressly limited its scope, and Appellant stated he filed separate claims. *Roberson* confirms res judicata applies only to claims actually litigated.

V. RESPONDENT ENGINEERED AND BENEFITTED FROM THE DELAY

Respondent induced delay through false assurances, while Appellant maintained contact and met her stated conditions. This supports equitable tolling.

VI. THE SUPERIOR COURT' S RELIANCE ON AN UNSERVED, INACCURATE ORDER VIOLATED DUE PROCESS

Appellant was denied notice and opportunity to object to the order's misstatements, violating due process. *Mathews*. The order's claim that civil claims were already decided in the DVPO was false.

VII. THE TORT IS SUPPORTED BY COMMON LAW AND CONSTITUTIONAL PRINCIPLES

The tort of custodial interference is recognized at common law and in the *Restatement (Second) of Torts* § 700. The Supreme Court recognizes the parent–child relationship as a fundamental liberty interest. *Troxel, Quilloin*. Psychological alienation may support an IIED claim. *Raftery*.

VIII. THE 2008 DEFAULT CUSTODY ORDER AND ABANDONMENT FINDING WERE PROCEDURALLY AND FACTUALLY DEFECTIVE

Respondent relies on the 2008 default custody order and its abandonment finding. Yet Respondent herself admitted that Appellant was calling T.B. “a couple times per week” and that both parents threatened to remove T.B., undermining the notion of abandonment under RCW 13.34.030(1). The order was entered by default while Appellant was improperly incarcerated due to Respondent’s false statements, and it denied him the opportunity to present evidence. Findings of abandonment, DV history, and abuse were uninvestigated, unfounded, and made without due process.

IX. SUMMARY JUDGMENT REQUIRES ADMISSIBLE EVIDENCE AND RESPONDENT FAILED TO MEET HER INITIAL BURDEN

Summary judgment may only be granted if the moving party first demonstrates, with admissible evidence, that there is no genuine issue of material fact and that they are entitled to judgment as a matter of law. CR 56(c); *Young v. Key Pharmaceuticals, Inc.*,

112 Wn.2d 216, 225 (1989). Argument of counsel is not evidence. *Lasalle Nat'l Bank v. San Juana*, 95 Wn. App. 148, 154 (1999).

Here, Respondent submitted no admissible evidence establishing that the 2013 relinquishment was valid, enforceable, and untainted by fraud. Nor did she show that it remained valid after the case was dismissed for lack of progress. At the hearing, Appellant objected multiple times to Respondent's unsupported statements, offered to present evidence demonstrating genuine disputes of material fact, and was overruled. The trial court erred by relying solely on unsupported assertions, disregarding Appellant's objections and offers of proof, and denying him the opportunity to contest the factual basis of her motion.

Respondent also improperly cited documents and orders from outside the designated record without filing a motion to supplement under RAP 9.11. *Story v. Shelter Bay Co.*, 52 Wn. App. 334, 345 (1988). The appellate court may only consider evidence properly in the record.

Respondent's Answer Brief improperly introduces at least five documents that are not part of the trial court record, in violation of RAP 9.1 and 9.12. The appellate court's review is limited to the record designated on appeal. *Story v. Shelter Bay Co.*, 52 Wn. App. 334, 345 (1988). Counsel's repeated citation to and reliance upon extra-record materials misstates the factual record and prejudices Appellant. Counsel's duty of candor requires accurate and honest representations of the record before the tribunal. See RPC 3.3(a). The Court should disregard all references to materials not properly before it.

These errors alone warrant reversal.

X. APPELLANT' S CLAIMS SOUND IN TORT AND ARE INDEPENDENT OF FAMILY LAW CUSTODY PROCEEDINGS

Respondent misframes this as a custody dispute barred by “best interests” considerations. Appellant’s claims are independent torts — fraud, custodial interference, IIED, abuse of process, defamation, and statutory violations — arising from Respondent’s misconduct. Washington recognizes such claims as separate from custody determinations. *Strode*.

XI. THE TRIAL COURT’ S FINDING OF “WILLFUL ABANDONMENT” WAS NOT SUPPORTED BY SUBSTANTIAL EVIDENCE

The Superior Court’s December 2008 finding that Appellant “willfully abandoned” his son under RCW 13.34.030 was unsupported by substantial evidence and cannot bar his claims here. Under RCW 13.34.030(1), abandonment occurs when a parent leaves the child without parental care or custody and fails to make reasonable efforts to maintain contact or provide support over an extended period.

The record shows the opposite. Respondent’s own November 2008 declaration admits that Appellant was calling his son “a couple times per week” and making threats to remove him from her custody — conduct wholly inconsistent with abandonment. Appellant repeatedly demanded the return of his son starting in April 2008, mere weeks after allowing him to stay temporarily with Respondent under a written agreement.

Appellant was also incarcerated in Colorado for part of the relevant time due to allegedly false reports made by Respondent, which impaired his ability to appear in court, and to pursue custody. Washington courts recognize that incarceration, standing alone, does not constitute willful abandonment where the parent has otherwise demonstrated intent and effort to maintain the relationship.

Thus, the abandonment finding rests on incomplete and uninvestigated allegations and ignores evidence of ongoing contact and repeated demands for return — precisely the opposite of abandonment.

XII. APPELLANT’ S CLAIMS SOUND IN TORT AND ARE INDEPENDENT OF FAMILY LAW CUSTODY PROCEEDINGS

Respondent misframes this case as a custody dispute subject to family law’s best interests standard. Appellant’s claims, as pled in his complaint, sound in tort — fraud, custodial interference, intentional infliction of emotional distress, abuse of process, defamation, and statutory violations. These claims are independent of and not precluded by the 2008 custody determination. Washington courts have long recognized such torts as separate from custody determinations. See Strode.

XIII. CONCLUSION

Respondent fails to overcome the genuine disputes of material fact and continues to misstate the record.

Respondent is basing her defense entirely upon the 2013 relinquishment, which is
dehors the record, and which the Appellant asserts was induced fraudulently, facially
evidencing a genuine dispute of material fact.

The trial court erroneously adopted the Respondent's false claim of res judica, devoid
any supporting evidence - despite the Appellants objections, repeated assertions that
court record proves it false, and repeated offers to provide indisputable evidence on
the matter.

This Court should reverse the summary judgment and remand for trial.

Respectfully submitted,

Zackariah Bennett, Pro Se

Dated: 07/20/2025

NOTICE OF ADDITIONAL AUTHORITY (RAP 10.8)

Appellant submits the following authorities:

- ◆ *Hazel-Atlas Glass Co. v. Hartford-Empire Co.*, 322 U.S. 238 (1944)
- ◆ *Pumphrey v. K.W. Thompson Tool Co.*, 62 F.3d 1128 (9th Cir. 1995)
- ◆ *Restatement (Second) of Torts* § 700
- ◆ *Troxel v. Granville*, 530 U.S. 57 (2000)
- ◆ *Lasalle Nat'l Bank v. San Juana*, 95 Wn. App. 148, 154 (1999)
- ◆ *Story v. Shelter Bay Co.*, 52 Wn. App. 334, 345 (1988)

These authorities support Appellant's arguments that procedural defenses cannot shield fraud on the court and affirm the validity of his claims.

Respectfully submitted,

Zackariah Bennett, Pro Se

Dated: 07/20/2025

APPENDIX A: TABLE OF CLAIMS

Claim	Legal Basis	Supporting Facts
Fraud	Stiley v. Block, 130 Wn.2d 486 (1996)	Inducing 2013 relinquishment through false promises, false representations, and concealment of secret agreement
Custodial Interference	Restatement (Second) of Torts § 700; Strode v. Gleason, 9 Wn. App. 13 (1973)	Withholding child despite repeated demands for return and maintaining secret no-contact agreement
Abuse of Process	Washington common law	Misusing court processes to secure default custody and prevent reunification
Intentional Infliction of Emotional Distress	Raftery v. Scott, 756 F.2d 335 (4th Cir. 1985)	Prolonged alienation, false accusations, and denial of contact causing emotional harm

Claim	Legal Basis	Supporting Facts
Defamation	Washington common law	False allegations of abuse and domestic violence to courts and others
Statutory Violations	RCW 9.73 RCW 9A.76.175	Illegal use of intercepted communications false statements to probation officers

Respectfully submitted,

Zackariah Bennett, Pro Se

Dated: 07/20/2025